

STATE OF NEW YORK

9620--A

IN SENATE

March 30, 2026

Introduced by Sen. SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to requiring residential health care facilities to maintain hospice agreements to ensure access to hospice services for eligible residents

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public health law is amended by adding a new section
2 2808-g to read as follows:

3 § 2808-g. Residential health care facility hospice agreements. 1.
4 Each residential health care facility shall enter into and maintain one
5 or more written agreements with hospice programs licensed pursuant to
6 article forty of this chapter to ensure access to hospice services for
7 residents who are eligible for and elect the hospice benefit.

8 2. Such agreements shall provide for coordination of care between the
9 residential health care facility and the hospice program and shall, at a
10 minimum, address:

11 (a) timely hospice evaluation and referral;

12 (b) roles and responsibilities of facility staff and hospice person-
13 nel;

14 (c) interdisciplinary care planning and symptom management;

15 (d) medication management and clinical oversight;

16 (e) after-hours communication and emergency response; and

17 (f) documentation and information sharing, consistent with applicable
18 law.

19 3. The department shall provide guidance and technical assistance to
20 residential health care facilities and hospice programs to support
21 implementation of this section, including model contract provisions and
22 best practice recommendations.

23 § 2. This act shall take effect on the one hundredth day after it
24 shall have become a law. Effective immediately, the addition, amendment
25 and/or repeal of any rule or regulation necessary for the implementation
26 of this act on its effective date are authorized to be made and
27 completed on or before such effective date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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